

1602
May 7

In Camera Stellata, coram Consilio ibidem,
Veneris, 7^o Maij, 1602, An^oque Elizab. R^{uae} 44. Tr^{no} Pasche.¹

WINSTON
v.
THROCK-
MORTON
—
Extortion
and other
several
offences
Answer, not
guilty
[p. 96]
Murder and
accessory
to it

Sir Thomas
Throckmor-
ton assumed
to acquit the
accessory to
the murder
for 800*l*.

Honourable
personages
scandalised
without
cause

Good
apology by
the Coun-
sellor in
giving
evidence.
The Lord
Keeper said
that this
aggravated
the offence

Fountains
and rivers
of Justice

A Statute
taken for
1600*l*. to
acquitt [him]
of felony.
This is ex-
tortion
[even] if the
money be
not paid

Sir Henry Winston informed against Sir Thomas Throckmorton for 'diverse heynouse offences,' in number now only nine, to all of which Sir Thomas pleaded Not Guilty. The first was for great extortion,² namely:—

One Lewis in the County of Monmouth was barbarously murdered by his 'Cosin Germain,' also named Lewse [*sic*], who was indicted, arraigned and executed for it; and another Lewis, brother to him who was murdered, being accessory to the murder, and the wife intending to proceed against him, he repaired to the said Sir Thomas Throckmorton, who assumed to acquit him and discharge him; and to this [end] advised and conferred with the said Lewis that money and large sums would have to be expended to procure this, and some great personages would have to be used to effect it. And therefore he imposed imputation on the Earl of Pembroke and his Lady, the Lord Admiral and the Chief Justice, without cause or probability of any colour. And therefore at the commencement [*a l'entraunce*] of the evidence, Phillips, of Counsel with the plaintiff, made apology that, notwithstanding the Earl of Pembroke and his Lady were by the said Sir Thomas injuriously scandalized, yet it would plainly appear that they were clear, and so proved by the Earl himself, by the depositions of others, and by the confession of Sir Thomas himself. The Attorney said, as to the others, that it was a great slander, for 'no harte in Englaunde did ever Conceau or had anye thoughte of Corruption in them; & if theise Fountaines be thus scandalized wth Corruption, what shall wee poore brookes look for.' Sir Thomas Throckmorton, being a Justice of the Peace and one of the Council of the Marches, April 35 Elizabeth, took a statute for £1600 from the said Lewis without defeasance, but the intent and agreement was that the said Sir Thomas should

¹ Eleven Councillors and Judges were present.

² For the others see *post*, p. 137, *et seq.*